

Raymond Dunham v. Multi-Color Corporation, et al., 24CV-0541

Hearing: Motion for Reconsideration or Relief from Dismissal

Date: September 3, 2026

TENTATIVE RULING

On August 28, 2024, Plaintiff Raymond Dunham filed this employment lawsuit against defendants Multi-Color Corporation (MCC), Larry Griffin, and Ricardo Gomez (collectively Defendants). Plaintiff's complaint alleges causes of action for (1) quid pro quo harassment, (2) hostile work environment, (3) retaliation, (4) failure to prevent harassment, (5) wrongful termination in violation of public policy, (6) theft of intellectual property, and (7) age discrimination.

Defendants filed a motion to compel arbitration and stay the action pending completion of arbitration. The Court granted the motion on July 31, 2025, and stayed the action.

Plaintiff timely filed a motion for reconsideration, which the Court denied on November 20, 2025. Plaintiff did not appear at the hearing.

On January 14, 2026, the Court held a status conference and Plaintiff failed to appear. The Court noted Plaintiff's failure to appear and on its own motion set an Order to Show Cause re: Dismissal for April 15, 2026.

On April 13, 2026, counsel for Defendants filed a declaration setting forth the factual background of the case. Counsel further declared that earlier that day, Plaintiff contacted their office to give a new email address. (Nelson 4/13/26 Decl., ¶ 10.) Counsel declared that Plaintiff had not at any time, electronically, by phone, by mail, or otherwise: 1) responded to their Arbitration Letter; 2) provided their office with a list of proposed arbitrators; 3) made any request that their office provide a list of arbitrators; nor 4) contacted their office to initiate discussions regarding arbitration. (*Id.*, ¶ 11.)

On April 14, 2026, Plaintiff filed an Amended Opposition to the Order to Show Cause re: Dismissal (OSC) and declaration in support, which included a notice of clerks delayed and/or denied docket filings. The documents further stated that Plaintiff had a disability, and that Defendants refused to arbitrate the claims. Those documents were not processed and docketed until April 20, 2026, after the OSC.

On April 15, 2026, Plaintiff failed to appear at the hearing on the OSC and the Court ordered the action dismissed.

On April 27, 2026, Plaintiff filed a motion for reconsideration under Code of Civil Procedure section 1008 and/or for relief from dismissal on grounds of mistake or excusable neglect under Code of Civil Procedure section 473(b).

Plaintiff contends that since his last appearance, he has become disabled and was unable to attend the hearing, and that he has had difficulties accessing his email. Plaintiff further contends that he hired legal counsel and believed he would be represented, but that he later determined the firm does not appear in court. He also explains that he has had problems getting documents filed and docketed, experiencing delays and rejections. Plaintiff contends that his failure to appear was due to mistake or excusable neglect and that it would be unjust to order the matter dismissed. (See Declaration of Ray Dunham.)

Plaintiff further contends that Defendants have failed to pay for and initiate arbitration and that they are trying to avoid arbitration via bankruptcy.

Defendants oppose the motion, contending that Plaintiff fails to show new facts or law such that reconsideration can be granted under Code of Civil Procedure section 1008. However, Defendants do not address Code of Civil Procedure section 473(b).

The Court finds that Plaintiff's failure to appear at the OSC was due to mistake or excusable neglect, and that coupled with the fact that the Court was unaware of his filings opposing the OSC at the time of the hearing, that Plaintiff should be relieved from dismissal of his action.

ORDER (PROPOSED)

Plaintiff's motion for relief from dismissal under Code of Civil Procedure section 473(b) is granted and the dismissal is vacated.

Plaintiff shall appear at the hearing either in person or remotely via Zoom. Plaintiff shall come prepared to confirm his correct email address.

The matter shall remain stayed pending arbitration.

The parties shall come prepared to discuss the status of the arbitration, and a date for a further status conference.